



CHAPTER cviii.

An Act to incorporate and confer powers on the Bordon and District Gas Company and for other purposes. A.D. 1912.

[7th August 1912.]

WHEREAS by the Woolmer and District Gas Order 1908 (herein-after referred to as "the Order of 1908") confirmed by the Gas Orders Confirmation (No. 2) Act 1908 Frederick William Talbot (the undertaker named therein) his heirs or assigns was authorised to construct and maintain gasworks to make gas and supply the same within the parishes of Headley Kingsley and Selborne all within the rural district of Alton in the county of Southampton:

And whereas the capital authorised by the Order of 1908 was eight thousand pounds with power to borrow two thousand six hundred and sixty-six pounds:

And whereas certain persons have formed themselves into a company under the name of "The East Hants Gas Company Limited" (herein-after referred to as "the Limited Company") for the purpose (inter alia) of acquiring the undertaking authorised by the Order of 1908 and the supply of gas within the area of supply defined by the said Order and such Company were on the twenty-eighth day of April one thousand nine hundred and ten duly registered pursuant to the Companies (Consolidation) Act 1908:

And whereas the Limited Company have with the consent of the Board of Trade acquired the business and undertaking authorised by the Order of 1908 together with the lands and interests in the lands described in Part I. of the schedule to this Act and the gasworks erected thereon and are now supplying gas in the parishes of Headley Kingsley and Selborne in the county of Southampton:

A.D. 1912

And whereas the nominal capital of the Limited Company is thirty thousand pounds divided into three thousand shares of ten pounds each :

And whereas the limits within which the Company are authorised to supply gas by this Act include the districts recently supplied with gas by the Liphook Gas Company Limited (in this Act called "the Liphook Company") and the Liss Gas Company Limited (in this Act called "the Liss Company") respectively :

And whereas the Liphook Company were registered on the twelfth day of November one thousand nine hundred and nine under the Companies (Consolidation) Act 1908 with a capital of five thousand pounds divided into five hundred shares of ten pounds each the whole of which shares were issued and four thousand nine hundred pounds paid up and the said company borrowed and expended further sums amounting to one thousand one hundred pounds on their undertaking :

And whereas the Liss Company were registered on the third day of June one thousand nine hundred and ten under the Companies (Consolidation) Act 1908 with a capital of ten thousand pounds divided into one thousand shares of ten pounds each of which shares three hundred and seventy five were issued in respect of which three thousand six hundred and ninety pounds were paid up and the said company borrowed and expended further sums amounting to one thousand one hundred and five pounds on their undertaking :

And whereas the Limited Company have acquired the undertakings of the Liphook Company and the Liss Company upon the terms that the Limited Company should issue to each of the shareholders of the Liphook Company and Liss Company in respect of each of the shares held by them respectively in the said companies one share of ten pounds credited as paid up with the same amount as was paid up on the said shares at the date of such acquisition :

And whereas the Limited Company have expended out of their capital of thirty thousand pounds the sum of eleven thousand three hundred and eighty-five pounds in acquiring and carrying out the undertaking authorised by the Order of 1908 the sum of four thousand nine hundred pounds in fully paid shares and one thousand five hundred and sixty-eight pounds

nineteen shillings and eightpence in cash in acquiring the undertaking of the Liphook Company and paying off the liabilities of that company and the sum of three thousand six hundred and ninety pounds in fully paid shares and one thousand three hundred and seventy-three pounds ten shillings and one penny in cash in acquiring the undertaking of the Liss Company and paying off the liabilities of that company making a total capital expenditure of twenty-two thousand nine hundred and seventeen pounds nine shillings and ninepence and the Limited Company are carrying out further works which are estimated to cost four thousand pounds:

A.D. 1912.

And whereas the Limited Company have issued two thousand seven hundred and eighty-three shares of ten pounds each all of which are fully paid:

And whereas the demand for gas in the limits authorised by the Order of 1908 and now supplied by the Limited Company is increasing and it would be of public and local advantage that the Company incorporated by this Act should be authorised to supply gas within the said limits and also within the other parishes and places adjacent thereto as defined by this Act:

And whereas by the Haslemere Gas Order 1905 confirmed by the Gas Orders Confirmation Act 1905 the Haslemere Gas Company (herein-after called "the Haslemere Company") were (inter alia) authorised to supply gas within the parish of Bramshott in the county of Southampton but by an agreement made between the Haslemere Company and Frederick William Talbot the promoter of the Liphook Company after reciting that the Haslemere Company had not exercised such powers it was agreed that for the consideration therein mentioned the Haslemere Company should not oppose any application by the said Frederick William Talbot for powers to supply gas within the parish of Bramshott provided such application was made within three years from the date of such agreement:

And whereas the time limited by such agreement expired on the thirtieth day of July one thousand nine hundred and eleven and no such application has been made but the Liphook Company did in fact supply gas within the said parish of Bramshott and the Limited Company are now continuing such supply:

And whereas it is expedient that the Limited Company should be dissolved and the members thereof re-incorporated with

A.D. 1912. — the powers herein-after conferred and that the Company so re-incorporated be authorised to maintain continue extend improve and renew the existing gasworks and that additional capital be provided for those purposes and for the other purposes of this Act:

And whereas it is expedient that the powers of the Haslemere Company for the supply of gas within the said parish of Bramshott should be repealed:

And whereas it is expedient that the Company should be authorised to supply gas within the parishes of Liss otherwise Liss Turney Greatham and Bramshott all in the county of Southampton and the parish of Rogate in the county of West Sussex:

And whereas it is expedient that the further powers should be conferred on the Company and such further provisions enacted as are contained in this Act:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

Short title.

1. This Act may be cited as the Bordon and District Gas Act 1912.

Incorporation of general Acts.

2. The Companies Clauses Consolidation Act 1845 (except the provisions thereof with respect to the conversion of borrowed money into capital) Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking).

The Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871 so far as the same are applicable for the purposes

of and are not inconsistent with or varied by the provisions of this Act are incorporated with and form part of this Act And the said Gasworks Clauses Acts as so incorporated with this Act shall apply to the existing gas undertaking of the Limited Company by this Act vested in the Company incorporated by this Act as if the same had been authorised by this Act:

A.D. 1912.

Provided that section 13 of the Gasworks Clauses Act 1847 shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act—

Interpretation.

The expression "the Company" shall mean the Company incorporated by this Act;

The expressions "the gasworks" "the works" and "the undertaking" shall respectively mean and include the gasworks and works connected therewith by this Act vested in or authorised to be continued and maintained by the Company and any improvement thereof which they may construct under the powers of this Act and the lands buildings estate right title property privileges and effects and the undertaking of the Company and every part thereof respectively.

4.—(1) The limits of this Act for the supply of gas shall be—
In the county of Southampton—

Limits of Act.

The parishes townships and places of Headley Kingsley Selborne all in the rural district of Alton Liss otherwise Liss Turney Greatham and Bramshott all in the rural district of Petersfield:

In the county of West Sussex—

The parish of Rogate in the rural district of Midhurst:
All of which limits are in this Act referred to as "the limits of supply."

A.D. 1912.

(2) The area above described is shown in pink colour on the map signed in triplicate by the Earl of Donoughmore the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred and the said maps shall respectively within six months after the passing of this Act be deposited in the Parliament Office of the House of Lords in the Private Bill Office of the House of Commons and in the principal office of the Company.

(3) If there be any discrepancy between the description of the limits of supply contained in this section and the maps signed as aforesaid the latter shall prevail.

(4) Copies of the map deposited in the principal office of the Company in pursuance of this section and certified by the secretary of the Company to be true copies shall be received in all courts of justice and elsewhere as *prima facie* evidence of the limits of supply.

Repeal of
powers of
Haslemere
Company.

5. From and after the passing of this Act all powers rights authorities and privileges of or belonging to the Haslemere Company under the provisions of the Haslemere Gas Order 1905 as confirmed by the Gas Orders Confirmation Act 1905 or otherwise for or relating to the supply of gas within the parish of Bramshott shall absolutely cease and determine.

RE-INCORPORATION.

Re-incor-
poration of
Company.

6. From and after the passing of this Act the Limited Company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have subscribed to or who shall hereafter become proprietors in the undertaking of the Company and their executors administrators and assigns respectively shall be and they are hereby united into a company for the purposes herein-after mentioned and shall be incorporated by the name of "The Bordon and District Gas Company" and by that name shall be a body corporate with perpetual succession and a common seal with power to purchase take hold and dispose of lands and other property for the purposes of this Act.

General pur-
poses of
Company.

7. The Company shall be established for the purpose of acquiring maintaining altering improving extending enlarging removing or discontinuing the gasworks of the Limited Company and of erecting gasworks manufacturing and supplying gas for lighting heating motive power and other purposes within the

limits of supply and may convert manufacture and sell all residual products resulting from the manufacture of gas by them and generally may carry on the business usually carried on by a gas company. A.D. 1912.

8. Subject to the provisions of this Act all the lands gas-works erections buildings rights and easements which immediately before the passing of this Act were vested in the Limited Company or any person in trust for them or to which the Limited Company were in anywise entitled and all mains and pipes plant plugs lamps irons retorts gauges meters gas stoves lamp-posts syphons apparatus stock effects matters and things which may have been by them purchased provided laid down erected or placed in any place or house within the limits of supply or which immediately before the passing of this Act were the property of the Limited Company and all moneys securities credits effects and other property whatsoever which immediately before the passing of this Act belonged to the Limited Company and the benefit of all contracts and engagements entered into by or on behalf of the Limited Company and immediately before the passing of this Act in force shall be and the same are hereby vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the Limited Company and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

Present property of Limited Company vested in Company incorporated by this Act.

9. Subject to the provisions of this Act as from the date of the passing of this Act so much of the Confirmation Act as confirms the Order of 1908 is hereby repealed and such Order is hereby annulled and the memorandum and articles of association of the Limited Company shall as to any prospective operation thereof be wholly void and the Company and the holders of shares or stock therein shall be exempted from all the provisions restrictions and requirements of the said Order or of any Act which applied to the Limited Company and the members thereof as such but nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said Order or of the said memorandum and articles of association incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of

Repeal of Order of 1908 and memorandum and articles of association of Limited Company to be void.

A.D. 1912. the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the Limited Company if this Act had not been passed.

Nothing to affect previous rights and liabilities.

10. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the Limited Company or the members thereof as such shall be as valid as if the Company had not been incorporated and the Order of 1908 had not been annulled and the Act confirming it had not been so in part repealed and the said memorandum and articles of association had not been avoided by this Act and such incorporation annulment repeal and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said Order were not annulled and the Act confirming it was not so in part repealed and the said memorandum and articles of association were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and the shareholders therein and the property of the Company shall to all intents and purposes represent the Limited Company and the members thereof as such and the property of the Limited Company as the case may be and the generality of this enactment shall not be restricted by any of the other sections and provisions of this Act.

Contracts prior to Act to be binding.

11. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the Limited Company or trustees or persons acting on behalf of the Limited Company or by to or with any other person to whose rights and liabilities they have succeeded and now in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the Limited Company or any trustees or persons acting on behalf of the Limited Company the Company had been a party thereto.

Actions &c. not to abate.

12. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending

by or against the Limited Company or any member thereof in relation to the affairs of the Limited Company or to which the Limited Company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the Limited Company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted for the Limited Company and its members respectively.

A.D. 1912.

13. Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the Limited Company were vested immediately before the passing of this Act and who (being authorised so to do) entered into any bond covenant contract or engagement in respect of the same or otherwise on behalf of the Limited Company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement.

Indemnity.

14. From and after the passing of this Act (and except as is by this Act otherwise expressly provided) the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the Limited Company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the Limited Company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf.

Company to satisfy liabilities of Limited Company.

15. All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the Limited Company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act.

Recovery of gas rents &c.

16. All persons who immediately before the passing of this Act owed any money to the Limited Company or to any person on their behalf shall pay the same with all interest (if any) due

As to payment of debts owing before passing of Act.

A.D. 1912. or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the Limited Company or for the payment of which the Limited Company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company.

Certificates
&c. to re-
main in force.

17. Notwithstanding the avoidance of the said memorandum and articles of association all certificates (until cancelled under the powers of this Act) sales transfers and dispositions heretofore made or executed under them for and with respect to any shares in the Limited Company shall remain in full force and continue and be available in all respects as if they had not been avoided.

Books &c.
continued
evidence.

18. All documents books and writings which if the said dissolution annulment repeal and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution annulment repeal and avoidance.

Officers to
continue
until re-
moved.

19. All officers and servants of the Limited Company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto annexed until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Present
registers of
members to
be continued.

20. The books kept by the Limited Company for entering the names and designations of the members thereof shall continue to be kept for similar purposes by the Company and be taken and considered as the register of shareholders and of holders of stock required to be kept by the Companies Clauses Consolidation Act 1845 until a new register is provided by the Company.

CAPITAL.

Capital.

21. The capital of the Company shall be forty thousand pounds which shall consist of twenty-seven thousand eight hundred and thirty pounds divided into twenty-seven thousand eight hundred and thirty shares of one pound each and shall represent the capital of the Limited Company issued at the date

of the passing of this Act and is in this Act called "the original capital" and twelve thousand one hundred and seventy pounds which is in this Act called "the additional capital" and shall be raised in manner herein-after mentioned. A.D. 1912.

22. The shares in the original capital shall be appropriated to and vested in the several persons who immediately before the passing of this Act were the registered members of the Limited Company in proportion to their respective holdings in and in substitution for their shares in the Limited Company and every share in the original capital so vested shall be subject and liable to the same trusts powers provisions declarations agreements charges liens and encumbrances as immediately before the passing of this Act affected the share or shares for which the same is or are substituted and so as to give effect to and not revoke any deed or other instrument or any testamentary disposition of or affecting the same. Original capital to vest in members of Limited Company.

23. The Company shall call in and cancel the existing certificates of shares in the Limited Company and shall issue in lieu thereof certificates for the shares to which the holders of such shares are respectively entitled but the holders of such existing certificates shall not be entitled to any certificate of proprietorship under this Act until they shall have delivered up to the Company to be cancelled the certificates of proprietorship issued to them before the passing of this Act or shall have proved to the reasonable satisfaction of the Company the loss or destruction thereof. Provided always that until the issue of such new certificates the existing certificates shall (according to the amounts of shares to be substituted by virtue of this Act for the shares in the capital of the Limited Company which they respectively represent) have and possess the same rights and advantages as if they were certificates for those respective shares created by virtue of this Act but if any holder of shares in the capital of the Limited Company neglects or omits to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address appearing in the shareholders' address book of the Limited Company the Company may suspend the payment of any dividend declared or made payable upon or in respect of the shares so held by him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the directors of the Company to have been lost or destroyed. Certificates of shares to be called in and others issued.

A.D. 1912.

Transfers
of shares
although
by present
name to be
valid.

24. All transfers or other dispositions of shares in the capital of the Limited Company shall after the substitution therefor of new shares and notwithstanding this Act be valid and have due effect given to them respectively as transfers of the respective amounts of new shares which the shares thereby expressed to be transferred or disposed of represent or which are or may be substituted for the same under the provisions of this Act although the instrument transferring or disposing thereof shall describe the same by the name or denomination which the shares transferred or disposed of had before such substitution and the bequest of or any covenant or provision of any deed or agreement relating to any such shares shall be held to apply to the nominal amount of new shares issued in substitution for such shares under the provisions of this Act.

Power to
Company
to raise
additional
capital.

25. The Company may from time to time raise the additional capital not exceeding in the whole twelve thousand one hundred and seventy pounds by the creation and issue at their option of new ordinary shares or new preference shares of the nominal value of one pound each or ordinary or preference stock or partly by one mode and partly by the other but no such shares or stock shall vest in the person or corporation accepting the same unless and until the full price of such shares or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of twelve thousand one hundred and seventy pounds. Provided also that the Company shall not raise by the issue of preference shares or stock a greater amount of such additional capital than six thousand pounds.

Privileges
&c. of
holders of
additional
capital.

26. The additional capital created by the Company under this Act shall be part of the general capital of the Company and the new shares or stock therein and the holders thereof respectively shall be entitled to the like rights of voting and any other rights qualifications and privileges in proportion to their holdings and be subject to the like provisions and liabilities as the holders of shares of the same class issued in substitution for the existing shares of the Limited Company under this Act.

27.—(1) All shares or stock in the additional capital authorised by this Act shall be issued in accordance with the provisions of this section.

A.D. 1912.

New shares
or stock to
be sold by
auction or
tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided as follows:—

- (a) Notice of the intended sale shall be given in writing to the clerk of the council of every district wholly or partially included within the limits of supply and to the Secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:
- (b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:
- (c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or

A.D. 1912. to one or more of these classes of persons only Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock.

BORROWING POWERS.

Power to
borrow.

28. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the capital of the Company which at the time of borrowing has been created issued or raised under the powers of this Act But no sum shall be borrowed in respect of any capital so created issued or raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof have been fully paid up.

Application
of moneys.

29. All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

30. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

A.D. 1912.
Debenture stock.

31. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one thousand pounds in the whole.

For appointment of a receiver.

32. All money to be raised by the Company on mortgage or by the issue of debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by the Company after the passing of this Act but this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividend on their mortgages or debenture stock.

Priority of mortgages and debenture stock over other debts &c.

33. If any money is payable to a shareholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Receipt in case of persons not *sui juris*.

PROFITS AND RESERVE &C. FUNDS.

34. The profits of the Company to be divided among the shareholders in any year shall not exceed the following rates (that is to say) On the original capital the rate of seven pounds

Profits of Company limited.

A.D. 1912. in respect of every one hundred pounds of such capital and on the additional capital to be raised under the powers of this Act the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital and the rate of six pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as preference capital.

Application of excess of profits over authorised rates of dividend.

35. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the authorised rate on the ordinary capital of the Company the excess shall be carried to the credit of the divisible profits of such undertaking for the next following year:

Provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividend at the authorised rate.

MEETINGS.

First and subsequent ordinary meetings.

36. The first ordinary meeting of the Company shall be held within six months after the passing of this Act and the subsequent ordinary meetings shall be held in the month of March in each year or at such other time as shall be appointed for that purpose by an order of a general meeting.

Quorum for general meeting.

37. The quorum for all general meetings of the Company shall be seven holders of stock present in person or by proxy holding amongst them not less in the aggregate than one-twentieth of the capital of the Company for the time being issued.

DIRECTORS AND AUDITORS.

Number of directors.

38. The number of directors shall not be more than five nor less than three.

Qualification of directors.

39.—(1) The qualification of a director shall be the possession in his own right of ordinary shares or stock to the nominal amount of not less than one hundred pounds in the aggregate in the capital of the Company.

(2) If any director shall be made bankrupt or shall go to reside abroad or shall become lunatic or of unsound mind or shall neglect to attend a meeting of directors for six months

[2 & 3 GEO. 5.] *Bordon and District Gas Act, 1912.* [Ch. cviii.]

(unless such neglect to attend be occasioned by illness or any other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant and thenceforth he shall cease from voting or acting as a director. A.D. 1912.

40. Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected a director of the Company in place either of a director retiring by rotation or of a director dying refusing to act or ceasing to be qualified or being disqualified to act unless notice in writing, that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary of the Company or left at the office of the Company fourteen days at least before the day of election. Notice of candidature for office of director.

41. The quorum of a meeting of directors shall be two. Quorum of directors.

42. The directors of the Limited Company namely Thomas Webb Edward Henry Jellett and Alexander Ritchie shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act. At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being (if they continue qualified) eligible for election and at the ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power herein-before contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are duly elected in their stead. First and subsequent directors.

43. Notwithstanding anything contained in the section of this Act of which the marginal note is "Notice of candidature for office of director" the council of the rural district of Alton and the council of the rural district of Petersfield (herein-after in this section referred to as "the councils") Appointment of director by rural district councils of Alton and Petersfield.

A.D. 1912. — may jointly appoint a person to be a director of the Company but such appointment shall be subject to the following provisions (that is to say) :—

- (1) The councils shall give notice under their respective common seals to the Company of the person so appointed. Provided that if notice of the appointment by the councils of the first director under the provisions of this section is not given within a period of two years from the date of the passing of this Act the power to appoint a director shall absolutely cease and determine :
- (2) The provisions of the section of this Act the marginal note whereof is "Qualification of directors" shall apply to any director appointed under the powers contained in this section :
- (3) The person so appointed must be a member of one of the councils and shall only hold office so long as he remains a member of one of the councils :
- (4) In the event of any director appointed by the councils resigning such appointment or if for any other reason his office as director shall become vacant the councils may proceed to appoint a person duly qualified under this section to such vacancy. Provided that if for a period of six months from the date on which the office became vacant the councils shall neglect or refuse to appoint a director the power so to do shall cease and determine :
- (5) The provisions of sections 83 and 88 of the Companies Clauses Consolidation Act 1845 shall not apply to any director appointed under the provisions of this section.

Directors
not to be
disqualified
&c.

44. No person shall be disqualified from becoming or continuing a director of the Company by reason of his or any partner of his being or becoming interested in any contract with the Company either in his own behalf or as a member of any other company corporation local authority or partnership but no such person shall as a director vote in respect of any question as to any such contract or the remuneration attached to any such office or place of trust or profit.

Auditors.

45.—(1) The prescribed number of auditors shall be one unless the number be increased to two by an order of a general

[2 & 3 GEO. 5.] *Bordon and District Gas Act, 1912.* [Ch. cviii.]

meeting and such auditors shall be members of the Institute of Chartered Accountants or of the Incorporated Society of Accountants and Auditors. A.D. 1912.

(2) It shall not be necessary for the auditors to hold any shares or stock in the Company.

46. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary of the Company. Powers of directors to determine remuneration of secretary.

47. The directors may in any year without calling a meeting of shareholders for the purpose declare an interim half-yearly dividend out of the then ascertained profits of the Company Provided that the amount of any interim half-yearly dividend so declared shall not exceed in any one half year one half of the amount of the authorised rate of dividend. Interim dividend.

48. The directors may close the register of transfers for a period not exceeding fourteen days previous to a declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the district within which the Company's principal place of business is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend. Closing of transfer books previous to declaring interim dividend.

WORKS AND LANDS.

49. Subject to the provisions of this Act the Company may upon the lands described in the schedule to this Act or on any of them or any part or parts thereof respectively continue erect maintain alter improve enlarge extend renew and remove or discontinue the gasworks of the Limited Company and may upon such lands respectively erect lay down provide and from time to time maintain alter improve enlarge extend renew and remove or discontinue additional and other gasworks retorts and gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying such gas within the limits of supply and may make store and supply such gas accordingly and may on the said lands convert and Powers as to construction and maintenance of gasworks &c.

A.D. 1912. manufacture residual products resulting from the manufacture of gas by them.

As to purchase of materials.

50. The Company shall not purchase or use in any process of manufacture any materials other than those required for the making and supply of gas by them or for the working up of their own residual products or for the construction maintenance and repair of their gasworks plant and buildings or of gas fittings.

For protection of Crowley and Company Limited.

51. For the protection of Crowley and Company Limited the following provisions shall unless otherwise agreed between the Company and Crowley and Company Limited have effect (that is to say):—

Notwithstanding anything in this Act contained the Company shall not erect lay down provide or maintain upon the piece of land (b) described in the schedule to this Act any gasworks or other works or apparatus and conveniences other than gasholders with their appurtenances and the Company shall not create or permit a nuisance on the said piece of land nor shall the said piece of land be used by the Company for the purpose of manufacturing gas or residual products.

Power to purchase land by agreement.

52. The Company may by agreement for the purposes of their undertaking purchase take and hold in addition to the lands described in the schedule to this Act any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the schedule to this Act.

Power to sell and lease lands.

53. Subject to the provisions of the Lands Clauses Consolidation Act 1845 the Company may sell and dispose of or may let on lease for such periods as they think fit any lands for the time being belonging to them and which may not at the time be required for the purposes of their undertaking and any such sale disposal or lease may be for such consideration and subject to such reservations stipulations restrictions and provisions and generally upon such terms and conditions as the Company think fit.

Power to lay pipes in streets not

54. The Company may upon the application of the owner or occupier of any premises within the limits of supply abutting

on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Acts 1847 and 1871 shall apply as if the street were a street within the meaning of those Acts.

A.D. 1912.

dedicated to public use.

55. The Company may purchase or take on lease dwelling-houses for persons in their employ and may erect fit up maintain and let houses cottages and buildings for such persons upon any lands for the time being belonging or leased to the Company.

Dwelling-houses for workmen.

56. For the protection of the county council of the administrative county of West Sussex and of the county council of the administrative county of Southampton (which councils are in relation to their respective counties in this section respectively referred to as "the council") the following provisions shall unless otherwise agreed in writing between the Company and the council apply and have effect (that is to say):—

For protection of West Sussex County Council and Southampton County Council.

(1) All mains pipes and works of the Company to be laid in or along any main road for the time being repairable by the council or in or upon or across any county or main road bridge vested in the council or any roadway over the same or approaches thereto so repairable shall be laid in such position in or at the side thereof and at such depth as the council in writing under the hand of their surveyor may reasonably direct:

(2) The provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall subject to the provisions of this section extend and apply to any such main roads and county or main road bridges and any such roadway over the same and any such approaches thereto and to all other property of the council opened and broken up or interfered with by the company in the exercise of the powers of this Act Provided that the notice required by the eighth section of the said Act of 1847 shall (except for laying connecting or repairing consumers' service pipes as to which three days' notice shall be given and except in cases of accidental leakage or burst or other emergency in which cases no notice shall be required) be not less than in the case of any such bridge or any such approaches

A.D. 1912.

thereto fourteen days instead of three days and in all other cases seven days instead of three days:

(3) The plan required by the ninth section of the Gasworks Clauses Act 1847 shall be accompanied by a section of the proposed works and shall (except as aforesaid) be delivered to the council or their surveyor by the Company not less than in the case of any such bridge or any such approaches thereto fourteen days and in all other cases seven days before the Company commence to open or break up any main road so repairable as aforesaid or interfere with any such county or main road bridge or any roadway over the same or approaches thereto so repairable as aforesaid or other property of the council for the purpose of executing the works:

(4) If the Company in the execution of any works in or affecting any such road street bridge or roadway as aforesaid shall cause any damage injury or disturbance to such road street bridge or roadway and shall neglect or refuse to make good all such damage injury or disturbance to the reasonable satisfaction of the council then it shall be lawful for the council after reasonable notice to the Company of the alleged neglect or refusal and of the works they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Company shall repay to the council all costs charges and expenses which the council shall reasonably and properly incur in carrying out such works including all reasonable expense of superintendence:

(5) Nothing in this Act shall authorise the Company to interfere with the structural part of any county or main road bridge without the consent in writing of the surveyor of the council which may be given upon such conditions (not being a money payment) as the council or their surveyor may reasonably determine:

(6) Nothing in this Act contained shall interfere with prejudice or affect the right of the council at any time to alter the level of deviate or improve in any manner they think fit any main road in or along

which any mains pipes or works of the Company shall have been laid and the Company shall forthwith on receiving notice in writing under the hand of the clerk or surveyor to the council so to do alter the position of any such mains pipes or works in the manner and to the extent prescribed by such notice or as in case of difference shall be determined by arbitration in the manner herein-after prescribed and the council shall repay to the Company the expense reasonably incurred by the Company in effecting any such alteration of the position of any such mains pipes or works:

A.D. 1912.

- (7) Nothing in this Act contained shall prejudice or affect the right of the council at any time to remove alter rebuild widen or repair any county or main road bridge or the approaches thereto or the roadway over the same in over or attached to which any mains pipes or works of the Company are carried in the same manner as the council might have removed altered rebuilt widened or repaired such bridge or the roadway over the same or the approaches thereto if this Act had not passed and such mains pipes or works had not been laid in over or attached to such bridge approaches or roadway and the council shall not make any compensation to the Company for any expense or loss to which the Company may be put by reason or in consequence of any such removal alteration rebuilding widening or reparation and in the event of any such bridge or the roadway over the same or the approaches thereto in over or attached to which any such mains pipes or other works are laid being removed altered rebuilt widened or repaired as aforesaid the Company shall at their own cost in all things alter the position of any works by which such mains or pipes are carried in over or attached to such bridge or the roadway over the same or the approaches thereto as aforesaid Provided that during the removal alteration rebuilding widening or reparation of such bridge or the roadway over the same or the approaches thereto as aforesaid the council shall afford to the Company all reasonable facilities for temporarily carrying such mains pipes and works

A.D. 1912.

across any stream or river so as not to interrupt the continuous supply of gas or to diminish the pressure of such supply through such mains or pipes and the Company may carry such mains and pipes accordingly and shall reimburse the council all reasonable expenses incurred by the council in affording such facilities :

(8) All works shall be so executed by the Company as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on any main road or over any county or main road bridge or the approaches thereto :

(9) The Company shall pay to the council the reasonable expenses incurred by them in relation to the reasonable superintendence by the council or their surveyor of any work to be done by the Company under the provisions of this section :

(10) If any difference at any time arises between the council and the Company touching this section or anything to be done or not to be done thereunder such difference shall be settled by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration as aforesaid :

(11) The council shall not be liable for or in respect of any damage or injury done to any work of the Company executed hereafter by reason of such work being laid at a depth below the surface of any main road or the roadway over a county or main road bridge or the approaches thereto insufficient for its protection from injury arising from the use by the council of any steam or other roller for the repair of any such road or of any traction engine not exceeding fifteen tons in weight.

For protection of
London and
South West-

57. For the protection of the London and South Western Railway Company (in this section called "the South Western Company") the following provisions shall unless otherwise agreed

between the South Western Company and the Company apply and have effect:—

A.D. 1912.

ern Railway
Company.

- (a) In laying down altering improving enlarging extending maintaining repairing or renewing any mains pipes or other works in the exercise of the powers contained in this Act upon across over under or adjoining or in any way affecting the railways lands and property now or hereafter belonging to or used or occupied by the South Western Company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the South Western Company (herein-after referred to as "the railway works") the same shall except in cases of urgent necessity be done under the superintendence and to the reasonable satisfaction of the principal engineer of the South Western Company and only according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by him in writing or in case of difference as may be determined by arbitration in manner herein-after provided Provided that if the said engineer shall not signify his approval or disapproval of any plans or proposals so submitted to him within twenty-eight days after the same are delivered to him he shall be deemed to have approved thereof Provided also that where in the opinion of the said engineer there is not sufficient space on any bridge to lay any mains or pipes between the road surface and the structure of any such bridge the South Western Company may require such mains or pipes to be carried below outside or independently of the structure of any such bridge and shall afford all reasonable facilities for the purpose:

- (b) All such works shall be done by and at the expense of the Company who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railways of the South Western Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Company Provided always that should the South

A.D. 1912.

Western Company elect so to do where any mains or pipes require to be laid under or across any level crossing of their railways they may themselves lay the same at the costs charges and expenses of the Company but so nevertheless that any mains or pipes so laid by the South Western Company shall be laid under the superintendence and to the reasonable satisfaction of the Company's engineer:

- (c) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to the railway works and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon:
- (d) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the bursting leakage or failure of any such mains pipes or works in under over or near to the railway works the Company shall make compensation to the South Western Company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner herein-after provided:
- (e) The Company shall give seven days' notice in writing to the South Western Company before commencing any works affecting the railway works or within ten yards of the South Western Company's boundary:
- (f) All mains or pipes and other works of the Company upon across over under or in any way affecting the railway works shall be at all times maintained in good repair by the Company and in default of their being so maintained the South Western Company may from time to time by notice in writing signed by their said engineer and delivered at the principal office for the time being of the Company require the Company to forthwith put the same into good repair and if the Company for fourteen days after the receipt of such notice refuse or neglect to proceed with the repair of the same the South Western Company may without any further notice to the Company repair

the same and all costs and expenses reasonably incurred by them in or about such repair shall be repaid to them by the Company. Provided that in case of accidents happening or immediate danger being apprehended to the railway works by reason of any such main pipe or other work as aforesaid being in want of repair the South Western Company may execute such repairs as may be immediately necessary provided that they shall forthwith give notice to the Company of their intention to commence the same and any reasonable costs and expenses to which the South Western Company may be put by reason of any such repairs shall be repaid to them by the Company the amount of such costs and expenses if disputed to be settled by arbitration as herein-after provided:

(g) The Company shall bear and on demand pay to the South Western Company all reasonable costs of the superintendence by them of the construction or repair of the works of the Company which affect the railway or works of the South Western Company and all reasonable costs of watching lighting and protection of the railway works with reference to and during such construction and repairs so far as such costs may be in case of difference determined by the arbitrator to have been necessary:

(h) If at any time it is found necessary in order to enable the South Western Company to carry out any alterations renewals repairs or extensions of their railway or works to alter the position of the said mains pipes or works the Company shall on receiving notice in writing from the South Western Company so to do at their own cost and to the reasonable satisfaction of the engineer of the South Western Company alter the position of the said mains pipes or works or temporarily support the same so far as may be necessary to enable the South Western Company to carry out such alterations renewals repairs or extensions of their railway or works and the provisions of this section shall apply to the said mains pipes or works in their altered position:

(i) Any dispute or difference which may arise between the South Western Company and the Company with

A.D. 1912.

reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the President of the Institution of Civil Engineers on the application of the South Western Company and the Company or either of them and the provisions of the Arbitration Act 1889 shall apply to such arbitration.

Crown
rights.

58. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods without the consent in writing of the Commissioners of Woods on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners are hereby authorised to give).

SUPPLY OF GAS &C.

Limit of
price.

59. The price to be charged by the Company for gas supplied by them to persons who shall burn the same by meter shall not at any time exceed four shillings and ninepence per thousand cubic feet.

Charge for
gas supplied
by means of
prepayment
meters.

60.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within their limits of supply through any other kind of meter or by any other method of supply.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove:

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the

cost of collection and other costs incurred by the Company in A.D. 1912.
connexion with the meter and fittings.

(3) The Company shall not charge for the hire of any prepayment meter without fittings any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of the meter:

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Company in connexion with the meter and fittings.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

61. The prescribed number of candles shall be not less than fourteen. Quality of gas.

62. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place which shall be provided by the Company at its manufacturing station within the parish of Headley. Testing place.

63.—(1) The quality of the gas supplied by the Company shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming 120 grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871. Testing quality.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer or the table photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Company or the local authority approve the use of any other burner photometer

A.D. 1912. or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Company shall before supplying or within three months after beginning to supply gas under this Act provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

Pressure.

64.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Company shall afford to the examiner all reasonable facilities for making the test.

Saving as to penalties.

65. No penalty shall be incurred by the Company for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

As to construction and placing of pipes &c. between mains and meters.

66. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

(1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Company's mains and the meter so far as such pipes and fittings are intended to be covered over:

(2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:

(3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating

within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company and at the gasworks: A.D. 1912.

- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company at the gasworks. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with:
- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

67. If any person is required by the Company to give to them security for any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the Company shall pay interest after the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands. Company to pay interest on money deposited as security for gas meter &c.

A.D. 1912.

Power to
supply gas
fittings &c.

68.—(1) The Company may sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

Power to
enter pre-
mises and
remove fit-
tings.

69. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

Gas con-
sumers to
give notice
to Company
before re-
moving.

70. At least twenty-four hours' notice shall be given to the Company at the gasworks by every gas consumer either personally at the office of the Company at the gasworks or in writing before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company.

Power to
refuse sup-
ply to per-
sons in debt

71. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas charges

[2 & 3 Geo. 5.] *Bordon and District Gas Act, 1912.* [Ch. cviii.]

and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

A.D. 1912

for other premises.

Notice to discontinue supply of gas.

72. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the Company at the gasworks or be given by the consumer personally at the office of the Company at the gasworks.

73. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

Period of error in defective meters.

74. The Company may lay down place repair alter remove and renew mains pipes culverts and other apparatus within the limits of supply for the purpose of procuring conducting or disposing of any oil or other material used by them in or resulting from any manufacture of gas or any residual products thereof or for any other purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when so laid so far as applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to lay pipes &c. for purposes ancillary to business of Company.

75. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator and shall at all times and at his own expense keep such anti-fluctuator in proper order and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the

Anti-fluctuators for gas engines.

[Ch. cviii.] *Bordon and District Gas Act, 1912.* [2 & 3 GEO. 5.]

A.D. 1912. anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Company may contract with local authority &c. for supply in bulk.

76. The Company may contract with any local authority company or person supplying gas in any district adjacent to the Company's limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or interfere with any streets beyond their limits of supply.

MISCELLANEOUS.

Power to take licences for use of patents.

77. The Company may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production utilisation and distribution of gas the production of coke tar pitch asphaltum sulphate of ammonia ammoniacal oil and the products from coal slack and other substances employed in or resulting from the manufacture of gas or otherwise in relation thereto but not so as to acquire any exclusive right to the working using exercising or putting in practice of any such invention.

Recovery of demands.

78. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Authentication and service of notices.

79. Any notice to be served by the Company on a person supplied with gas shall be sufficiently authenticated by the signature of the secretary of the Company being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of gas by the name either of the secretary or of a collector of the Company being affixed thereto as aforesaid and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same

[2 & 3 GEO. 5.] *Bordon and District Gas Act, 1912.* [Ch. cviii.]

to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises. A.D. 1912.

80. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

81. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty. Every penalty under this section shall be recoverable summarily. Copy of Act to be registered.

There shall be paid to the Registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies' (Consolidation) Act 1908 on registration of any document other than a memorandum of association.

82. All the costs charges and expenses of incident and preliminary to the preparing and applying for obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company. Costs of Act.

A.D. 1912. The **SCHEDULE** referred to in the foregoing Act.

LANDS FOR GASWORKS.

Lands on which the Company may continue erect maintain alter improve enlarge extend and renew or discontinue gasworks:—

- (a) Certain freehold land now belonging to the Limited Company and now occupied by the existing gasworks situate in the parish of Headley in the rural district of Alton in the county of Southampton containing one acre or thereabouts and bounded on the south by the public road leading from Bordon Camp to Headley Mill and having a frontage thereto of one hundred and fifty feet or thereabouts:
- (b) A piece of freehold land belonging to the Limited Company measuring sixty feet in width and two hundred feet in depth or thereabouts formerly part of a larger piece of land situate on the north side of the road leading from Greatham to Longmoor in the parish of Greatham in the county of Southampton and known as the Old Sand Pit which larger piece is the close numbered 115 on the $\frac{1}{2500}$ Ordnance map of Hampshire sheet No. XLIV—10 edition of 1910.

Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

ROWLAND BAILEY, Esq., C.B., M.V.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or

H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or

E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN;

or from the Agencies in the British Colonies and Dependencies,
the United States of America, the Continent of Europe and Abroad of

T. FISHER UNWIN, LONDON, W.C.